
MUTUAL NON-DISCLOSURE AGREEMENT

WHEREAS, each party desires to explore a potential business relationship and, in connection therewith, may disclose to the other certain confidential and proprietary information;

WHEREAS, the parties desire to protect such confidential information from unauthorized use and disclosure;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

1.1 Confidential Information.

"Confidential Information" means any and all non-public information disclosed by either party (the "Disclosing Party") to the other (the "Receiving Party"), whether in written, oral, electronic, or tangible form, including but not limited to: trade secrets, business plans, financial projections, technical specifications, customer lists, software, inventions, and any other proprietary data, that is designated "Confidential" or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

1.2 Exclusions.

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully known to the Receiving Party prior to disclosure; (c) is independently developed by the Receiving Party without reference to the Confidential Information; or (d) is required to be disclosed by law or court order, provided the Receiving Party gives prompt written notice to the Disclosing Party.

2. OBLIGATIONS OF RECEIVING PARTY

2.1 Non-Disclosure.

The Receiving Party agrees to hold all Confidential Information in strict confidence and to not disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party.

2.2 Non-Use.

The Receiving Party agrees not to use any Confidential Information for any purpose other than evaluating and engaging in discussions regarding the potential business relationship between the parties (the "Purpose").

2.3 Protection Standard.

The Receiving Party shall protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

2.4 Authorized Disclosure.

The Receiving Party may disclose Confidential Information only to its employees, officers, directors, agents, and professional advisors who have a need to know such information for the Purpose and who are bound by confidentiality obligations no less restrictive than those herein.

3. TERM AND TERMINATION

3.1 Duration.

This Agreement shall commence on the Effective Date and continue for a period of two (2) years, unless earlier terminated by either party upon thirty (30) days written notice to the other party.

3.2 Survival.

The obligations of confidentiality and non-use shall survive the termination or expiration of this Agreement for a period of three (3) years.

3.3 Return of Materials.

Upon termination or upon request by the Disclosing Party, the Receiving Party shall promptly return or destroy all materials containing Confidential Information and certify in writing that it has done so.

4. REMEDIES

The parties acknowledge that breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, either party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity, without the requirement of posting bond or other security.

5. GENERAL PROVISIONS

5.1 Governing Law.

This Agreement shall be governed by and construed in accordance with the applicable laws of the jurisdiction in which the Disclosing Party is domiciled, without regard to conflict of law principles.

5.2 Entire Agreement.

This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior negotiations, representations, or agreements relating thereto.

5.3 Amendment.

No amendment or modification of this Agreement shall be valid unless made in writing and signed by authorized representatives of both parties.

5.4 Severability.

If any provision of this Agreement is found to be unenforceable, the remaining provisions shall continue in full force and effect.

IN WITNESS WHEREOF

The parties hereto have executed this Agreement as of the Effective Date first written above. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

Disclosing Party

Signature: _____

Name: _____

Title: _____

Date: _____

Receiving Party

Signature: _____

Name: _____

Title: _____

Date: _____